



U.S. Department
of Transportation
**Research and
Special Programs
Administration**

400 Seventh St., S.W.
Washington, D.C. 20590

JUL 30 2003

DOT-E 13272

EXPIRATION DATE: September 30, 2003

1. GRANTEE: Airgas - Mid South, Inc.
Tulsa, OK
2. PURPOSE AND LIMITATION:
 - a. This exemption authorizes the one-way transportation in commerce of anhydrous ammonia in a DOT specification cylinder which has developed a leak. The cylinder is equipped with a Chlorine Institute Emergency A-Kit to prevent leakage during transportation. This exemption provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein.
 - b. The safety analyses performed in development of this exemption only considered the hazards and risks associated with transportation in commerce.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR §§ 172.301(c) in that the marking requirements are waived; and 173.301(f) in that a pressure relief device is required on a DOT specification cylinder, except as specified herein.
5. BASIS: This exemption is based on the application of Airgas - Mid South, Inc., dated July 29, 2003, submitted in accordance with § 107.117 and a determination that it is necessary in order to protect life and property.

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6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Hazardous Material Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
Ammonia, anhydrous	2.2	UN1005	Inhalation Hazard

7. SAFETY CONTROL MEASURES:

a. PACKAGING - Packaging prescribed is an ICC 4AA480 cylinder which has developed a leak. The cylinder must be equipped with a Chlorine Institute Emergency "A-Kit" to prevent leakage during transportation.

b. OPERATIONAL CONTROLS -

(1) The cylinder must be blocked and braced to prevent movement during transportation.

(2) Emergency response information provided with the shipment and available via an emergency response telephone number must indicate that the cylinder is not fitted with a pressure relief device and provide appropriate guidance for exposure to fire.

(3) The driver of the transport vehicle must be instructed that when the vehicle is in an accident involving spilled fuel or fire, the vehicle must be moved to a safe location unless moving the vehicle would directly endanger the driver or others.

(4) No cylinder may leak hazardous materials during transportation.

8. SPECIAL PROVISIONS:

a. The cylinder authorized by this exemption must be transported by private motor carrier.

b. The marking requirements of §§ 172.301(c) are waived.

c. The cylinder will be transported one-time, one-way, from Wichita, Kansas to Tulsa, Oklahoma.

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle.
10. MODAL REQUIREMENTS: A current copy of this exemption must be carried aboard the motor vehicle used to transport the package covered by this exemption.
11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:
- o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
 - o Registration required by § 107.601 et seq., when applicable.

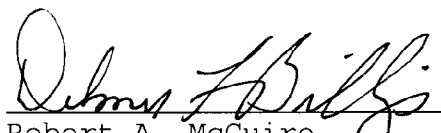
Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this exemption must receive training on the requirements and conditions of this exemption in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this exemption, including display of its number, when this exemption has expired or is otherwise no longer in effect.

12. REPORTING REQUIREMENTS:

The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (Sections 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder(s) of this exemption must inform the AAHMS, in writing, of any incident involving the package and shipments made under the terms of this exemption.

Issued in Washington, D.C.:


Robert A. McGuire
Associate Administrator for
Hazardous Materials Safety

JUL 30 2003
(DATE)

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Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, Department of Transportation, Washington, D.C. 20590.
Attention: DHM-31.

Copies of this exemption may be obtained by accessing the Hazardous Materials Safety Homepage at <http://hazmat.dot.gov/exemptions> Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

PO: DL